

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:
Date Purchased:

-----X
RICHARD ORTIZ,

SUMMONS

Plaintiff(s),

Plaintiff designates Kings
County as the place of trial.

-against-

THE CITY OF NEW YORK AND P.O. "JOHN DOE",

The basis of venue is:
Plaintiff's Residence

Defendant(s).
-----X

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
September 8, 2017


Robert J. Renna, Esq.
ROBERT J. RENNA, P.C.
Attorneys for Plaintiff(s)
RICHARD ORTIZ
26 Court Street, Suite 303
Brooklyn, NY 11242
(718) 422-1003
Our File No. 17-085

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. "JOHN DOE"
c/o NEW YORK CITY POLICE DEPARTMENT (66th Precinct)
5822 16th Avenue
Brooklyn, NY 11204

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

-----X
RICHARD ORTIZ,

VERIFIED COMPLAINT

Plaintiff(s),

-against-

THE CITY OF NEW YORK AND P.O. "JOHN DOE",

Defendant(s).
-----X

Plaintiff, by his attorneys, ROBERT J. RENNA, P.C., complaining of the Defendants, respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at the time of the commencement of this action, plaintiff RICHARD ORTIZ, was and still is a resident of the County of Kings, City and State of New York.

3. That the cause of action alleged herein arose in the County of Kings, City and State of New York.

4. That at all times herein mentioned, defendant THE CITY OF NEW YORK was and is a municipal corporation, organized and existing under and by virtue of the laws of the State of New York.

5. That at all times herein mentioned, defendant THE CITY OF NEW YORK, maintained a police department that was under the control and direction of the defendant, THE CITY OF NEW YORK.

6. That at all times herein mentioned, defendant THE CITY OF NEW YORK operated, managed, maintained, and controlled the NEW YORK CITY POLICE DEPARTMENT.

7. That prior to the commencement of this action Plaintiff duly served and filed a Notice of Claim against the Defendants and that such notice of claim and intention to sue was presented, and THE CITY OF NEW YORK has neglected and for refused to make adjustment or payment

thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

8. That at all times herein mentioned, defendant P.O. "JOHN DOE" was and is employed by THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

9. That at all times herein mentioned, defendant P.O. "JOHN DOE" was acting within the course and scope of his employment with THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

10. That at all times herein mentioned, defendant P.O. "JOHN DOE" was acting under color of state law.

11. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

AS AND FOR A SECOND CAUSE OF ACTION

12. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

13. That on September 5, 2016 at approximately 3:30 pm, Plaintiff RICHARD ORTIZ was lawfully 1636 43rd Street, Apt. B2, County of Kings, City of Brooklyn, State of New York 11204.

14. That on September 5, 2016, THE CITY OF NEW YORK by and through its agents, servants and/or employees, including P.O. "JOHN DOE" and other members of the NEW YORK CITY POLICE DEPARTMENT, assaulted and battered and used excessive and unreasonable force against plaintiff RICHARD ORTIZ.

15. That on September 5, 2016, THE CITY OF NEW YORK by and through its agents, servants and/or employees, including P.O. "JOHN DOE" and other members of the NEW YORK CITY POLICE DEPARTMENT, acting the court of their employment as police officers, and under color of law, and without legal cause of justification arrested the plaintiff, RICHARD ORTIZ,

causing plaintiff to be handcuffed and imprisoned and causing plaintiff to sustain serious permanent injuries.

16. The defendant, THE CITY OF NEW YORK, their agents, servants, and/or employees, while acting within the scope of their employment with defendant THE CITY OF NEW YORK, were negligent, reckless and careless in causing Plaintiff serious personal injuries.

17. By reason of the unprofessional and improper acts of defendant's agents, servants and/or employees, the plaintiff suffered mental shock, mental anguish and psychological trauma and was otherwise injured.

18. Plaintiff was arrested and incarcerated without cause or justification and without due process of law.

19. Plaintiff was forced to associate and mingle with persons accused of serious crimes, drug addicts and persons of low reputation, all against his will and without cause or justification, all of which caused the plaintiff shame and humiliation. Plaintiff was caused to be sick, unwell and was unlawfully denied his liberty and freedom.

AS AND FOR A THIRD CAUSE OF ACTION

20. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

21. That by reason of the aforesaid assault and battery and use of excessive and unreasonable force, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, including his rights under the Fourth Amendment to be free from unreasonable searches and seizures, and their rights pursuant to 42 USC § 1983 by those, including P.O. "JOHN DOE", who under color of a statute or regulation of a state, caused plaintiff to be so deprived, thereby resulting in the aforementioned damages to plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION

22. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

23. That on September 5, 2016, in the County of Kings, City and State of New York, THE CITY OF NEW YORK, by and through its agents, servants and/or employees, including P.O. "JOHN DOE" and other members of the NEW YORK CITY POLICE DEPARTMENT, wrongfully and falsely arrested plaintiff and then caused plaintiff to wrongfully to be detained and imprisoned.

24. That the aforesaid arrest, detention, and imprisonment was caused by THE CITY OF NEW YORK, its agents servants and/or employees, including P.O. "JOHN DOE", without a warrant and without any reasonable or probable cause or belief that plaintiff was in fact guilty of any crime.

25. That defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, while acting in their official capacity as agents, servants and/or employees of defendant, THE CITY OF NEW YORK, and without any just or cause or provocation and under the color of their authority, brought the plaintiff to the police precinct and maliciously and fraudulently caused charges to be entered in the Courts against the plaintiff; said defendants knew said charges were totally false and untrue and said defendants made false and fraudulent charges and maliciously prosecuted the plaintiff to protect and conceal their own vicious criminal acts upon the plaintiff as heretofore alleged.

26. The charges against the plaintiff, RICHARD ORTIZ was dismissed in Criminal Court, Kings County.

27. That by reason of the false arrest, imprisonment and detention, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and business, and was caused to suffer much pain in both mind and body, and to sustain economic loss and other damages.

AS AND FOR A FIFTH CAUSE OF ACTION

28. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

29. That by reason of the aforesaid false arrest and imprisonment, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, including their right under the Fourth, Fifth and Fourteenth Amendment to be free from unreasonable searches and seizures and his rights pursuant to 42 USC § 1983 by those, including P.O. "JOHN DOE", who under color of a statute or regulation of a state, caused plaintiffs to be so deprived, thereby resulting in the aforementioned damages.

AS AND FOR A SIXTH CAUSE OF ACTION

30. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

31. That the aforesaid assault and battery and false arrest and imprisonment perpetrated by P.O. "JOHN DOE" and the other involved police officers were the result of the negligence of THE CITY OF NEW YORK in its hiring, supervision, training, and retention of P.O. "JOHN DOE" and the other involved police officers.

AS AND FOR A SEVENTH CAUSE OF ACTION

32. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

33. That THE CITY OF NEW YORK's hiring, supervision, training, and retention of P.O. "JOHN DOE" arose to the level of deliberate indifference to the consequences of its actions, and indifference to plaintiffs rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, and their rights pursuant to 42 USC § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the aforementioned causes of action, for compensatory damages in the sum of FIVE MILLION DOLLARS (\$5,000,000), and for punitive damages in an amount to be determined by the trier of

fact, together with attorney's fees pursuant to 42 USC § 1988, and together with the costs and disbursements of this action.

Dated: Brooklyn, New York
September 8, 2017



Robert J. Renna, Esq.
ROBERT J. RENNA, P.C.
Attorneys for Plaintiff(s)
RICHARD ORTIZ
26 Court Street, Suite 303
Brooklyn, NY 11242
(718) 422-1003
Our File No. 17-085

VERIFICATION BY AFFIDAVIT

STATE OF NEW YORK,

SS:

COUNTY OF KINGS,

Richard Ortiz

being duly sworn, says:

I am a Plaintiff in the action herein: I have read the annexed

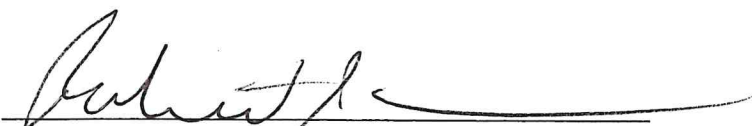
Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my personal files.

Dated: BROOKLYN, NEW YORK

X 

Subscribed and sworn to before me


NOTARY PUBLIC

ROBERT J. RENNA
Notary Public, State of New York
No. 02RE6095897
Qualified in Kings County
Commission Expires July 21, 2019

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

RICHARD ORTIZ,

Petitioner,

-against-

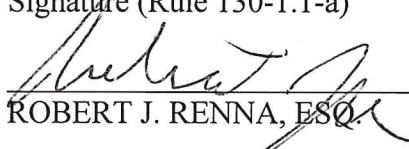
THE CITY OF NEW YORK AND P.O. "JOHN DOE",

Respondents.

SUMMONS AND VERIFIED COMPLAINT

Robert J. Renna, P.C.
Attorneys for Plaintiff(s)
26 Court Street Suite 303
Brooklyn, New York 11242
(718) 422-1003

Signature (Rule 130-1.1-a)


ROBERT J. RENNA, ESQ.